



Label Services and Distribution Agreement

Effective date: Date of Signature

This Agreement consists of the Terms as below, together with any schedules/ appendices referred to. This is to be construed in accordance with and as an addition to the Writers agreement between Ostereo and the Owner.

Between

1. Ostereo Limited ('Ostereo'), Registered office: The Landing, Media City, Salford, M50 2ST, United Kingdom. Company Registration Number: 08446340.

2. The Owner:

Full name / Artist Name: Ramin Bostan / groan room

Address: 54 Laburnum St, Salford, M6 5LZ, United Kingdom

Contact email / Phone: raminbostan@outlook.com / 07807799388

Definitions

1. Digital Service Provider (herein referred to as 'DSP/s') - Any supplier of music content to Consumers by way of any form of digital delivery. (For Example but not limited to Spotify, Apple Music, Shazam, Deezer, Youtube etc

2. The Works - The Master Recordings, Compositions and Performances belonging to the Owner, contemplated by this agreement and listed on 'Schedule - The Works'.

3. Digital Distribution - Means the making available of The Works direct to consumers by means of electronic transmission of any kind (including any method of downloading or streaming) by wire or other device.

4. Aggregator - Any company, organisation or individual who has been granted the necessary rights to distribute The Works via any or all DSPs.

5. Licensed Territory - The World and the Solar System

6. Owner's Share - The owner's share will be equivalent to 85% of net receipts in accordance with Clause 7 below.

7. Ostereo Digital Distribution Services - The primary service contemplated herein. Ostereo's distribution of the works to all DSPs (unless expressly excluded) facilitated by Clause 2 below.



8. **Re- Brand / Re-Branding** shall mean distinguishing symbol, mark, logo, name, word, sentence or a combination of these items created for the EP / product exclusively owned by Ostereo.

Important Information

4. Is the Owner working with any other Aggregator who is distributing the Works via one or more DSP? **Yes / No**

2. If yes above, please outline all DSPs on which the Works are currently available (for example but not limited to Spotify, Apple Music, Deezer, Youtube, Soundcloud etc.)

3. If the Owner wishes to exclude one or more DSP from this agreement, please outline the DSP/s in question below. Ostereo will not make the works available on the DSP/s listed below (if any).

WHEREAS:

- A. The Owner is the sole owner of the master recordings of the owner performances wether alone or with others, and which recordings are owned 100% by the Owner. All such master recordings are referred to in this agreement as the "Recordings". The Recordings embody musical compositions written and/or composed and/or owned and/or controlled 100% by the Owner. All such musical compositions are referred to in this agreement as the "Compositions".
- B. Owner may write, compose, record, or acquire ownership and / or control of further Recordings and / or Compositions during the Term (which is defined below).
- C. Owner may create, produce, develop and/ or own (and/ or acquire ownership of) audio-visual films or programmes that embody the Recordings and/or Compositions ("Music Videos") during the Term (which is defined below).
- D. The Recordings, Compositions and/ or Music Videos are together sometimes referred to in this agreement as the "Works" (or any of them individually as the context requires). Works shall include those listed in the attached Schedule (if



any).

- E. The Owner has agreed to licence the Works to Ostereo on the terms set out in this agreement.

Commercial Terms and Conditions

1. Services Provided For the avoidance of doubt, in consideration of your undertakings below, Ostereo agrees to provide any of the following services to the Owner: Ostereo Music Digital Distribution Services, Physical Distribution Services and any other services mutually agreed by the parties from time to time, on and subject to the terms and conditions of this Agreement.

2. Grant of Rights

2.1) In consideration of the Royalty (as defined below) payable by Ostereo to the Owner and of other good and valuable consideration, the Owner hereby grants to Ostereo a non-exclusive, irrevocable, transferrable licence in and to the Works (and all other like rights (including without limitation the performing and making available rights) contained in the Works) for the Term and throughout the world and solar system (the “**Territory**”) to:

2.1.1) record, manufacture, advertise, promote, distribute, sell, advertise and otherwise market and exploit the Works via all customary channels of distribution;

2.1.2) exploit the Works by way of all non-physical, electronic or digital forms of dissemination, transmission, or communication in any and all media, formats and/or configurations (whether known now or in the future developed) including (but not limited to) via the internet, as permanent or semi- permanent downloads, via streaming, webcasts, all forms of broadcasting and/or via any mobile telephone exploitation and the owner hereby grants to Ostereo:

2.1.2.1) The exclusive right to Distribute the Works outlined in the Schedule included in this agreement in accordance with Clause 1 above throughout the licensed territory.

2.1.3) “make available” the Works by way of all non-physical, electronic or digital forms of dissemination, transmission, or communication in any and all media, formats and/or configurations (whether known now or in the future developed);

2.1.4) to manufacture and advertising, publicity and promotional material for the Works, and/or to use and publish the Owner’s name, likenesses and biographical material in



connection with the exploitation and promotion of the Works;

2.1.5) to sub-licence the Recordings and/or Compositions to DSPs in order to maximise the Digital Distribution of the Works throughout the Service period.

2.1.6) to make available the recordings by means of Digital Distribution and to collect all royalties and other sums arising from the exercise of such;

2.1.7) to do all such things as may be necessary for Ostereo to enact the rights granted herein;

2.1.8) subject to the terms of Clause 4, collect and administer all Publishing rights income arising from the exploitation and/or use of any or all of the Compositions; and/or

2.1.9) to authorise and/or licence third parties to undertake one or all of the above; on the terms of this Agreement.

2.1.10) Encode the Works into digital files and make any and all necessary modifications to the Works as may result therefrom;

2.1.11) Make and stream preview clips of the Works, in each case to the extent necessary for the purposes of performing the Services outlined in Clause 1.

2.2) Ostereo may licence or sub-licence its rights (or any of them) under this agreement in the ordinary course of its business.

2.3) Ostereo will use its reasonable efforts to exploit the Works but gives no warranty express or implied that it shall be able to do so. Without limiting the generality of this Clause, Ostereo shall be entitled (at its discretion) to refuse to accept, exploit and/or continue to exploit any Recording, Composition and/or Music Video.

2.4) The Owner waives any legal right to the re-brand associated to the Master recording which is solely created, owned and marketed by Ostereo and accepts that the brand associated cannot be used in any form by the Producer or any other third party.

3. Service Period

3.1) The term of this agreement shall commence on the effective date and (subject to the earlier expiry and/or termination of the term of this Agreement on the terms set out in this Agreement) shall run for a minimum period of twenty-four (24) months and thereafter it shall continue for rolling, consecutive twelve (12) month periods until either party gives to the other at least three (3) months' notice in writing.

3.2) Notwithstanding the termination of the Term of this agreement if during the Term



Ostereo has granted licences in respect of any Works to third parties which licences contain any provisions more favourable to Ostereo than the provisions of this Agreement (including, without limitation, the term and/or duration of such licence) then Owner agrees that this Agreement will be deemed varied and amended as of the date of such licence to include and incorporate the terms of such licence. Accordingly, Ostereo shall continue to have the right to use that Work for the purposes of such third party licences and such licences shall continue to be effective. Ostereo shall continue to collect the relevant income (if any) and account to the Owner for its share of such income under the terms of this agreement.

4. Music Publishing Royalties

4.1) We agree to pay or procure the payment of any mechanical and other publishing royalties due on the manufacture/distribution & digital distribution of the Works contemplated by this agreement.

4.2) The Owner agrees that the Musical Compositions underlying the Recordings shall be available for licence on standard industry terms in all jurisdictions save that:

4.2.1) If the Licensed Territory includes the USA and Canada, the following shall apply: If you have agreed controlled composition provisions with any Owner for the USA and Canada, you shall use reasonable endeavours to ensure that we shall have the benefit of such provisions in connection with the manufacture and distribution of Records embodying Licensed Content by such Owner in the USA and Canada subject always to the rights and requirements of the relevant local sub-publisher/s or administrator/s.

4.3) For the avoidance of doubt, if Ostereo does not receive in any part of the Licensed Territory 100% of the total Music Publishing Royalties resulting from the use and/or exploitation of the Compositions and/or the Recordings (and if applicable such Music Video) in the Territory then the Royalty payable by Ostereo to the Owner hereunder shall be correspondingly reduced to the extent the Owner (or any PRO) was paid a share of such money, and in the case of payment to the Owner, whether directly or via a PRO. If monies not received by Ostereo exceed the amount that Ostereo is due to account to the Owner, the amount of such excess shall constitute a debt due to Ostereo by the Owner, and if there are insufficient royalties to repay the debt within a reasonable period of time Ostereo may elect to require that the Owner reimburses it on demand.

5. Obligations of the Own

5.1) In respect of each Work supplied by the Owner hereunder the Owner shall provide Ostereo with complete information for such Work, including the full names of any co-



writers and the share of each Composition attributable to each co-writer. If the shares of copyright in any Composition are not specified then they shall be deemed equal between all cowriters. In entering into this Agreement, the Owner hereby acknowledges and agrees that it has obtained all necessary consents, permissions, licences and/or clearances from any party (including, but not limited to, a co-writer) with any share or interest in the Works to allow Ostereo to exploit the Works fully and without restriction or further payment (save as set out in this Agreement), and to fulfil all its obligations to the Owner under this Agreement.

5.2) For each Recording supplied by the Owner to Ostereo hereunder the Owner shall deliver to Ostereo a full digital recording in a wav file 48khz, 24 bit format or such other format as is acceptable to Ostereo (details of which will be supplied on request) together with a lyric sheet. Recordings should be by Dropbox or Link or other method to be agreed or by post to: Music

5.3) For each Music Video supplied by the Owner to Ostereo hereunder the Owner shall deliver to Ostereo a full digital copy of the same in the highest quality format available to Owner, or such other format as is acceptable to Ostereo (details of which will be supplied on request) together with a lyric sheet. Music Videos should be by Dropbox or Link or other method to be agreed or by post to: Music Department, Ostereo Limited The Landing, Media City, Salford, M50 2ST, United Kingdom. Company Registration Number: 08446340.

5.4) Ostereo shall not be entitled to make any changes or additions to a Work without the Owner's prior written approval. Ostereo, shall, however, be entitled to edit Works for timing purposes or format changes and to use up to 30 seconds of a Recording and/or a Composition for promotional purposes and in idents. The Owner agrees that any edits made of a Recording and/or a Composition by Ostereo pursuant to this agreement shall be licenced to Ostereo on the same terms as set out in this agreement save that unless otherwise agreed in writing by Ostereo, acting reasonably and in good faith, no third parties may be granted the right to exploit the edited Recording and/or Composition. The Owner gives Ostereo the right to use its own Id systems for tracking and identification Purposes.

5.5) The Owner consents to all forms of commercial exploitation of the Works now existing or created in the future and the Owner agrees to waive, alternately not to assert, any right (including so-called moral rights) that would prevent Ostereo, or any person authorised by Ostereo, from exercising the rights licensed to Ostereo further to this Agreement including (but not limited to) exploiting the Works in the format delivered to Ostereo and any edits or format changes required to do so.

5.6) The Owner will provide to Ostereo written details of any restrictions and/or



limitations of the Rights granted to Ostereo hereunder: (a) on (or in any event by no later than 30 days after) the Commencement Date in respect of Recordings existing on or prior to the Commencement Date; and (b) promptly during the Service Period in respect of any new Recordings. All Rights relating to Works in respect of which no such notification is received by us will be deemed to be subject to no limitations or restrictions (save as set out herein).

5.7) The Owner will complete and return the submission form supplied by Ostereo if and when a DSP requires specific label approval for the exploitation of the Works on such Digital Service. The Owner Acknowledges that Ostereo is not responsible for any failure to exploit the Works via a DSP where such failure is due to the Owner's failure to complete and return the submission form.

6. Takedown Requests

Upon written request by the Owner, Ostereo agrees to issue a takedown request to each DSP supplied by Ostereo to remove any particular Work from its service, Provided that where a Takedown Request is made by the Owner for reasons other than technical or legal reasons, that Takedown Request will be subject to Ostereo's prior written approval.

7. Owner's Share

7.1) Ostereo agrees to pay to the owner a royalty from any exploitation (arising out of the service outlined in Clause 1 above) equal to Eighty-Five per cent (85%) of the net receipts directly attributable to such exploitation.

7.1.2) "Net receipts" shall mean all gross royalties and fees paid to or received by Ostereo and which royalties and fees arise directly and identifiably from the exploitation of the Works in question less (a) Ostereo's reasonable costs (including without limitation administration costs) incurred in connection with the exploitation of the Recording and/or the Composition in question; (b) VAT and any other like taxes required to be deducted or paid in any part of the Territory; and/or (c) costs of collection.

7.2) The Owner specifically acknowledges that the Royalty includes full and proper equitable remuneration in respect of the exploitation of all rights (including without limitation any rental and lending rights in relation to the Works licensed to Ostereo under this Agreement).

8. Payment and Accounting



8.1) Ostereo shall keep proper books and records of account in respect of exploitations of the Works or any of them and shall make up statements of account showing the Royalty due to the Owner in respect of each Work (or element thereof) at 30 (thirty) day intervals until Ostereo shall cease to derive income from such Recording and/or Composition. Ostereo shall provide such statements (less commissions due) to the Owner digitally and shall make payment of the amounts shown due to the Owner within 90 days of such accounting dates by direct payment into the Owner's bank account details of which the Owner will provide to Ostereo promptly following signature of this agreement. Where the Royalty due to the Owner as shown on such statement is less than £50 sterling Ostereo shall not be obliged to pay such amount to the Owner but shall carry forward such sum until the next accounting is due which is more than £50 sterling.

8.2) Not more than once in any year, subject to reasonable notice of at least 60 days, and at the Owner's own cost, the Owner may appoint a chartered or certified accountant to inspect the relevant parts of Ostereo's books and records that relate solely and identifiably to the exploitation of the Works further to this Agreement in order to verify the accounts. At the time of the proposed appointment such accountant shall not be engaged in an audit for any other rights owner contracted to Ostereo. Any audit shall be at the usual place of business of Ostereo during normal business hours. The Owner may not inspect the books or records in respect of royalty accounts rendered more than two (2) years previously. In the event that any such inspection reveals under accounting then Ostereo shall be entitled to verify the results of the audit with its own independent auditor and thereafter will pay through the mutually agreed (by the auditors) under accounted amount.

8.3) If any costs arise from the exploitation of the Works the liability for which falls on Ostereo (e.g. Payment of mechanical royalties), such costs will be deducted from the Owner's share. Ostereo will account for mechanical royalties to MCPS (or the appropriate affiliated collection society) as necessary with respect to all Net Receipts for mechanical rights are unavailable, in respect of which territories the Owner will be responsible for accounting to MCPS and/or the appropriate publisher or collection society.

8.4) Ostereo will account to the Owner beginning three (3) months after the first exploitation of the Works hereunder and thereafter in line with Clause 8.1 above. Ostereo will be required to account to the Owner only in respect of monies received by Ostereo in the UK which wholly and identifiably relate to the exploitation of the Works hereunder.



9. Warranties and indemnity

9.1) The Owner warrants that: a) the Owner is the owner of the Works (and/or all elements thereof) and has the right to grant the rights licensed under this agreement free of encumbrances and that the Recordings and the Compositions shall be original and not infringe the rights of any third party nor be obscene or defamatory; b) there is no claim or other legal action pending or threatened in respect of the Works (and/or all elements thereof) ; c) there are no uncleared samples in the Works; d) all consents and approvals have been obtained so that both the Works are available for use without further consent or approval of any kind.

9.2) The Owner hereby indemnifies Ostereo against any loss (including legal fees on an indemnity basis) that Ostereo may suffer resulting from any claim against Ostereo inconsistent with any warranty, agreement or representation made by the Owner in this agreement. Until such claim has been finally adjudicated, settled or withdrawn Ostereo, in its sole discretion, shall have the right to withhold a reasonable proportion of any and all Royalties becoming payable to the Owner hereunder.

9.3) The Owner authorises Ostereo to enforce and protect all copyrights and/or other rights in and to the Works. Ostereo may, in its sole discretion, join the Owner as party to any proceedings in respect of the enforcement or defence of any claim in respect of the Works (and/or all elements thereof). Any legal costs and disbursements incurred by Ostereo shall be borne by Ostereo initially but shall be deductible as a first charge on any sums recovered by either party by way of damages or otherwise. Thereafter any balance shall be shared between the Owner and Ostereo as if it were royalty income hereunder.

10. Liability

10.1) This Clause sets out Ostereo's entire financial liability (including any liability for the acts or omissions of

Ostereo's employees, agents, consultants and subcontractors) to the Owner in respect of:

10.1.1) any breach of this Agreement (including any and all Service Schedules);

10.1.2) any use made by you of the Services; and

10.1.3) and representation, statement or tortious act or omission (including negligence) arising under or in connection with this Agreement.



10.2) All warranties, conditions and other terms implied by statute or common law are, to the fullest extent permitted by law, excluded from this agreement.

10.3) Nothing in this Agreement limits or excludes Ostereo's liability for/in respect of:

10.3.1) death or personal injury resulting from negligence; or

10.3.2) fraud or fraudulent misrepresentation; or

10.3.3) misuse of your confidential information; or

10.3.4) payment of sums properly due and owing to you in the course of normal performance of this Agreement; or

10.3.5) other matters for which liability cannot be lawfully excluded or limited

10.4) Subject to the above, Ostereo shall not be liable to you in contract, tort, misrepresentation or otherwise for any loss of revenue, profit, business opportunity or anticipated savings, or for any loss of goodwill or reputation, or for any indirect or consequential loss.

10.5) Without prejudice to Clause 10.4, Ostereo's entire aggregate liability to you whether arising in contract, tort (including negligence and breach of statutory duty), misrepresentation or otherwise arising by reason of or in connection with this Agreement shall be limited to £1.

11. Further assurance

The Owner undertakes to acknowledge, execute and deliver to Ostereo any further instruments or documents and to perform all such further acts as Ostereo may reasonably deem necessary to give effect to the terms and provisions of this agreement.

12. Termination

12.1) Either party may terminate this agreement immediately by notice to the other providing:

12.1.1) The other is in breach of the obligations under this Agreement. If such breach is capable of remedy but the breaching party fails to remedy the breach within fourteen (14) days of receiving notice of it- then the first sentence of this



clause shall apply; or

12.1.2) the other goes into liquidation (whether compulsory or voluntary) otherwise than for the purposes of an amalgamation or reconstruction; or

12.1.3) If an administration or or receiver or similar officer is appointed over the whole or any part of the other's assets; or

12.1.4) if the other enters into any arrangement for the benefit of or compounds with its creditors generally; or

12.1.5) if the other threatens to do any of the things mentioned in clauses 12.1.1, 12.1.2, 12.1.3 or 12.1.4; or

12.1.6) if a similar occurrence to the above occurs in any other jurisdiction;

12.1.7) if the other ceases or threatens to cease to carry on business.

12.2) Termination of this Agreement pursuant to this Clause 12 shall not affect any rights or remedies of either party which may have arisen as a consequence of any breach or which have accrued to either party under this Agreement up to the date of termination.

13. Service Amendments

13.1) Ostereo has the right from time to time and without notice to change aspects of one or more Services provided that such changes do not materially affect the nature, scope of, or the charges for such Service(s).

13.2) If Ostereo intends to make any other change to any Service for any other reason, Ostereo shall notify the Owner and the parties shall negotiate in good faith regarding the effects of such change.

13.3) Ostereo may cease to supply any one or more Services at any time on at least three months' notice to the Owner.

14. Notices

14.1) Any notice given under this agreement shall be in writing and shall be delivered personally, or sent by pre-paid first-class post or recorded delivery or by commercial courier to the address for each party set out at the beginning of this agreement, or By correspondence email, or as otherwise specified by the relevant party by notice in writing to the other party. Royalty statements will be sent to the Owner via the



correspondence email as outlined in this agreement

14.2) A notice shall be deemed to have been duly received:

14.2.1) if delivered personally, when left at the address referred to in this clause; or

14.2.2) if sent by pre-paid first-class post or recorded delivery

14.2.3) if delivered by commercial courier, on the date and at the time that the courier's delivery receipt is signed.

14.2.4) If sent via email

15. Entire agreement

15.1) This agreement constitutes the whole agreement between the parties and supersedes all previous agreements between the parties relating to its subject matter. Any future updates or amendments to this agreement can be via email or any other digital means and can be treated as part of this agreement

15.2) Each party acknowledges that, in entering into this agreement, it has not relied on, and shall have no right or remedy in respect of, any statement, representation, assurance or warranty (whether made negligently or innocently) other than as expressly set out in this agreement.

15.3) Nothing in this clause shall limit or exclude any liability for fraud.

16. Third party rights

No person other than a party to this agreement shall have any rights to enforce any term of this agreement.

17. Waiver

No failure or delay by a party to exercise any right or remedy provided under this agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it preclude or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall preclude or restrict the further exercise of that or any other right or remedy.



18. Governing Law and Jurisdiction

This agreement shall be governed by and construed in accordance with the law of England and the parties irrevocably agree that the courts of England shall have non-exclusive jurisdiction to settle any dispute or claim of whatever kind that arises out of or in connection with this agreement or its subject matter or formation (including non-contractual disputes or claims).

19. Confidentiality

Information contained in this agreement is strictly confidential and for the use of the parties to it only. Any public disclosure, in part or in whole, in any form, way or use, by the Owner or any other party of the information contained or attached to this agreement is strictly prohibited without the consent in writing from Ostereo.

20. Music Submissions

All Works submitted to Ostereo by the Owner now or in the future can be submitted on a separate listing, outlining the relevant details as in 'Schedule - The Works' signed by the Owner and will be taken and treated as part of this agreement.

21. Assignment:

Ostereo may assign this agreement and its rights hereunder (together with its obligations hereunder) in whole or in part to any person, company or other legal entity which controls, which is controlled by, or which is under common control with, Ostereo, or which is in partnership with Ostereo and/or any of its affiliates, or to any party acquiring all, or a substantial part of, Ostereo's shares and/or assets or with whom Ostereo may merge. This is on the basis that Ostereo will remain primarily liable for its obligations unless and to the extent that the assignee enters into an agreement directly with the Owner to observe all such obligations.

Schedule- the Works

Track title

Owner's share

get off	100%
little Italy	100%
hope never came in the post	100%



Signature page

Owner Signature

I Ramin Bostan (print name)

As SOLE copyright holder accept the above terms.

(please indicate SOLE or JOINT)

Signed by

Owner Ramin Bostan

Date 15/04/2020

Witness of Owner's signature

Witness _____ (print name)

Signed _____ (signature of Witness)

Address _____ (address of Witness)

Occupation _____ (occupation of Witness)

Email Address _____ (email address of Witness)

Signed by

Howard Murphy, a director for and on behalf of

Ostereo Limited H.M. Murphy

In the presence of Matthew Drayton

Address

The Landing Blue, MediaCityUK, Salford, M50 2ST



Occupation General Manager